



# IP Audit Checklist

A quick guide for founders to spot,  
protect & power up your most  
valuable IP assets

# How to nail down your brand identity (using trade marks)

## Steps:

- 1 Check that your **name/logo/slogan is distinctive** (avoid purely descriptive terms).  

- 2 **Run early clearance:** Companies House, domains, app stores, key social handles (this is not enough on its own).
- 3 Get a **professional trade-mark search** (identical/similar marks in relevant classes).
- 4 File a **UK trade mark** with the **UK Intellectual Property Office (IPO)**. Make sure to pick the right classes/specification.  

- 5 **Plan international protection:** EU via EUIPO, or multiple countries via the Madrid Protocol.
- 6 **Set up monitoring** (watch service for marks/domains/app stores).
- 7 Use correctly: **Don't use ® until registered; ™ is fine pre-registration** (be careful - using the ® logo without pre-requisite registration in the UK is a criminal offence)  

- 8 Maintain/defend: **Keep evidence of trademark use;** note non-use revocation after 5 years; **renew every 10 years.**
- 9 Keep the register accurate: **Record any assignments/licences** at the IPO.

# How to protect your content & code (with copyright & third-party content)

## Steps:

- 1 **Inventory your works** (codebases, website/app copy, images, video, decks, marketing assets, UI).
- 2 **Lock in ownership:**
  -  **Employees** - ensure contracts include assignment of IP created in the course of employment.
  -  **Contractors/freelancers/consultants** - get written assignment (present & future rights) + moral-rights waiver + source-files delivery.
  -  **Ensure founders assign IP** to the company by way of a founder IP assignment agreement.
- 3 **Keep dated records** (commits, drafts, exports) to evidence authorship and timelines; remember – **copyright does not require registration** - but it does **require evidence of authorship**.
- 4 **Respect others' rights:** maintain an open-source & asset register/SBOM (Software Bill of Materials); license stock/fonts/images that you use properly.
- 5 **Use copyright notices** where helpful; remember copyright protects expression, not ideas.
- 6 **Record assignments/licences** (copyright recordal isn't required in the UK but keep contracts tidy).

# How to protect the look of your product (using designs)

## A) Registered Designs (appearance: lines, contours, ornamentation, etc.)

### Steps:

- 1 Identify **protectable appearance features** (you cannot protect function).
- 2 **Keep confidential pre-filing** (NDA; careful launches).
- 3 **Review if there is a similar design** that already exists/is already protected in the UK. You can seek assistance from an IP lawyer.
- 4 **File the application with the UK IPO** to protect your design. If you already disclosed, you may still have the 12-month grace period.
- 5 **File UK registered designs;** consider EU (EUIPO) and/or Hague System for other countries.
- 6 **Diary renewals** (every 5 years, up to 25). Set up monitoring and record any assignments/licences.



## B) Unregistered Design Rights

### Steps:

- 1 **UK Unregistered Design Right (UDR)** protects **shape/configuration** (of 3D articles only) if it is original and not commonplace - these rights arise automatically and do not require registration. Keep dated design docs and first marketing.

**Remember:** Protection lasts for **10 years after first sale** or **15 years after creation of design** (whichever is shorter)

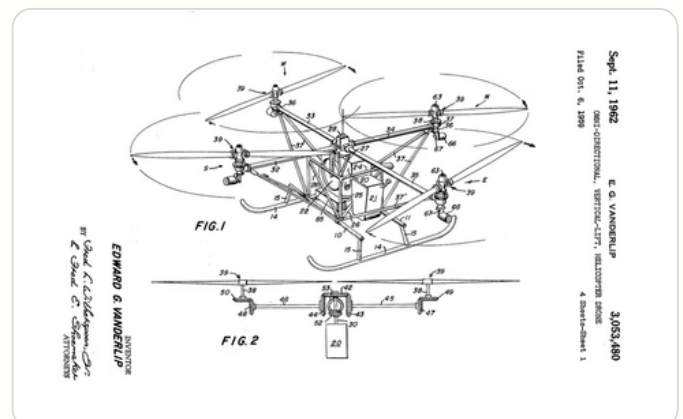
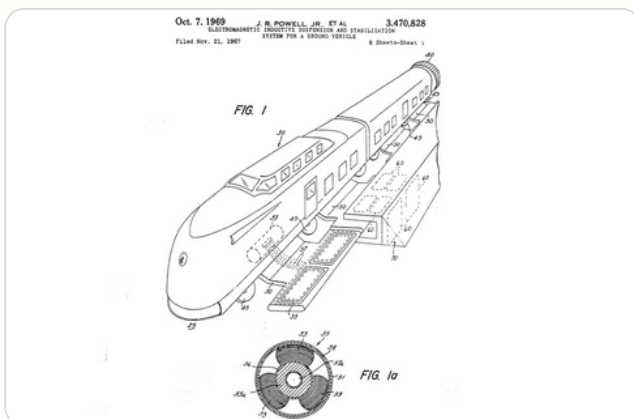
- 2 **Supplementary Unregistered Design (SUD)** protects overall appearance for **3 years from first disclosure** in the UK.
- 3 **Use NDAs before disclosure** where possible; keep proof of creation/disclosure (including time stamps).



# How to protect inventions (file a patent)

## Steps:

- 1 **Assess patentability:** software “as such” *isn’t patentable* - you need a technical contribution (e.g., improving computer/network operation) capable of use in some kind of industry.
- 2 **Keep your invention confidential pre-filing** (NDA, restricted demos, internal need-to-know). Most investors won’t sign pre-pitch NDAs, use non-confidential decks or file first.
- 3 **Engage a patent attorney;** run novelty checks to assess patentability.
- 4 **File strategy:** UK first; then within 12 months consider Patent Cooperation Treaty to keep options open internationally.
- 5 Ensure **employee inventions vest in the company;** get assignments from all inventors/contractors.
- 6 **Diary prosecution/renewals;** keep lab notebooks, test data, and tech-effect evidence.



# How to safeguard the “secret sauce” (understanding trade secrets & confidential info)

## Steps:

- 1 **Identify your trade secrets** (recipes, models, prompts, data, pricing, roadmaps).  
Maintain a trade-secret register.
- 2 **Implement reasonable measures** (a legal requirement):
  - ✓ **NDA**s and **confidentiality clauses** (employees, contractors, partners).
  - ✓ **Need-to-know** access, **least-privilege permissions**, **encrypted storage**, **password managers**.
  - ✓ **Keep clear classification & labelling** (“Confidential/TS”); versioned access logs.
  - ✓ **Onboarding/off-boarding** (IP/confidentiality reminders, credential revocation, asset return).
  - ✓ **Staff training + incident/breach response playbook**.
- 3 **For investor meetings, share only what’s necessary**; avoid disclosing patentable details pre-filing.

**NON-DISCLOSURE  
AGREEMENT**

**PARTIES**

- This Non-Disclosure Agreement (hereinafter referred to as the “Agreement”) is entered into on \_\_\_\_\_ (the “Effective Date”), by and between \_\_\_\_\_ with an address of \_\_\_\_\_, (hereinafter referred to as the “Disclosing Party”) and \_\_\_\_\_ with an address of \_\_\_\_\_, (hereinafter referred to as the “Receiving Party”) (collectively referred to as the “Parties”).

**CONFIDENTIAL INFORMATION**

- The Receiving Party agrees not to disclose, copy, clone, or modify any confidential information related to the Disclosing Party and agrees not to use any such information without obtaining consent.

- “Confidential information” refers to any data and/or information that is related to the Disclosing Party, in any form, including, but not limited to, oral or written. Such confidential information includes, but is not limited to, any information related to the business or industry of the Disclosing Party, such as discoveries, processes, techniques, programs, knowledge bases, customer lists, potential customers, business partners, affiliated partners, leads, know-how, or any other services related to the Disclosing Party.

**RETURN OF CONFIDENTIAL INFORMATION**

- The Receiving Party agrees to return all the confidential information to the Disclosing Party upon the termination of this Agreement.

**OWNERSHIP**

- This Agreement is not transferable and may only be transferred by written consent provided by both Parties.

**GOVERNING LAW**

- This Agreement shall be governed by and construed in accordance with the laws of \_\_\_\_\_.

**SIGNATURE AND DATE**

- The Parties hereby agree to the terms and conditions set forth in this Agreement and such is demonstrated by their signatures below:

**Top Tip:** You should be able to **explain how amazing your product is**, without giving details about how you made it. Explain the impact it has on the world, rather than the technicalities around how it’s made.

## How to ensure you actually own what your team creates (think key contracts)

### Steps:

- 1 **Employment agreements** should include **IP assignment**, **invention-disclosure duties** and **confidentiality that survives termination**.
- 2 **Contractor/agency agreements** should include **IP assignment** (present & future), **moral-rights waiver**, **delivery of source files**, **OSS compliance**, **no hidden third-party rights**.
- 3 **Founder IP**, you need to make sure you **assign any pre-incorporation IP to the company**.
- 4 **Record assignments/licences at the IPO** (TMs/designs/patents) so the public register matches reality.
- 5 **Licensing IP externally**: Make sure you **define territory, fields of use, exclusivity, royalties, QC/brand guidelines, audit, termination**.



## How to plan protection abroad (what are your international routes)

### Steps:

- 1 **Trademarks**: You can use **Madrid Protocol** for multi-country filings and **EUIPO** for EU-wide protection.
- 2 **Designs**: You can use **Hague System** for multiple countries from a single filing.
- 3 **Patents**: You can use **Patent Cooperation Treaty** for multiple country filings.

